



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 16 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11676

EXPIRATION DATE: May 15, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Vulcan Chemicals
Birmingham, Alabama
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation, in commerce, of a DOT Specification 105A500W tank car, containing the residue of a division 2.3 material, meeting all DOT requirements except that the tank car has a defective safety relief valve with a chlorine "C" kit attached. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a); 173.24(b); 179.100-15(c); 179.100-12(c); 174.3; and 174.50(a).
5. BASIS. This emergency exemption is based on Vulcan Chemical's application of April 15, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification number	Packing Group
Chlorine	2.3	UN 1017	N/A

APR 16 1996

Continuation of DOT-E 11676

Page 2

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT specification 105A500W tank car, GATX 45304, meeting all DOT specification requirements except that the tank car has a defective safety relief device. A Chlorine "C" Kit has been installed to prevent the release of product.
- b. MARKING - Tank car GATX 45304 shall be marked "DOT-E 11676" in letters and numerals at least four inches high on a contrasting background above the DOT specification marking.

8. SPECIAL PROVISIONS.

- a. Shipment of tank car GATX 45304 is authorized from Philmany Pulp and Paper Company, Kaukauna, Wisconsin, to Vulcan Chemical Company, Port Edwards, Wisconsin, a distance of approximately 100 miles utilizing the most direct route available via Wisconsin Central Limited and Fox Valley and Western Limited.
- b. The protective housing cover for tank car GATX 45304 shall be secured in the open position to prevent movement.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9252 or 366-0509

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

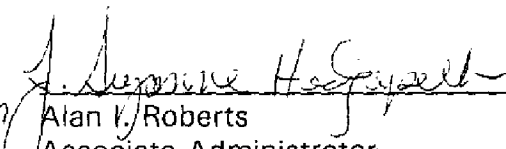
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS.

- a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:


Alan V. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 16 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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